

Guardianship Tentative Rulings
March 10, 2025
8:30 a.m.
Department 42

NOTICE TO ALL GUARDIANS AND PETITIONERS: Phone appearances are highly recommended. Additionally, the Court's Self Help Center is available by phone and email to assist Guardians and Petitioners. The Self Help Center does not provide assistance with Guardianships of the Estate. Please see the Court's website for updated information and contact information for the Court's Self Help Center.

Appearances will be by telephone through WebEx unless otherwise specifically ordered by the court. To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 between 8:20 – 8:30 a.m.

The access code is 1464798527

There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. please mute your telephone until your case is called;
2. please do not place the call on hold;
3. minimize all background noise during your call;
4. please identify yourself, each time, prior to speaking with the court;
5. disconnect when the court has completed your case or cases;
6. the court prohibits the recording of these proceedings.

GUARDIANSHIP OF HARMONEY CALDWELL & ADANAE RAMERIZE

Case Number: 25PG-0032803

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person of minors, Harmony Caldwell and Adanae Ramerize. The Petition was filed by the minor's maternal grandmother, Rachel Heckler. Letters of Temporary Guardianship issued on February 6, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

The mother has been personally served; however, service is defective. The proof of service filed February 28, 2025 fails to identify if mother was specifically served with a copy of the Petition and Notice of Hearing and is incomplete as to item 5. There is no proof of service of the Notice of Hearing for the father of Harmony, the father of Adanae, Harmony's paternal grandparents, Adanae's paternal grandparents, or the siblings Izaiah and Anthony. The Court will dispense with notice to the deceased maternal grandfather. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. If any of the above parties consent to the guardianship, Judicial Council form GC-211 may be signed and filed as an alternative to service.

Further, the Petition contains the following defects:

1. As to Harmony: the ICWA-010(A) attached to the Petition filed February 5, 2025, is incomplete. Petitioner must complete an Amended ICWA-010(A) with information regarding her inquiry into whether Harmony may be an Indian Child.
2. As to Adanae: the ICWA-010(A) attached to the Petition filed February 5, 2025, is incomplete. Petitioner must complete an Amended ICWA-010(A) with information regarding her inquiry into whether Harmony may be an Indian Child.
3. Item 13 on the Confidential Guardian Screening Form (GC-212) must be marked. An Amended GC-121 must be filed to cure the defect.
4. Petitioner resides in Oregon; therefore Ms. Heckler must file and serve a Petition to Fix Residence Outside The State of California (GC-085) and Notice of Hearing in order for the children to be moved to Oregon.

The Court has reviewed the Court Investigator's report, filed March 4, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. No objections have been filed.

This matter is continued to **Monday, April 28, 2025 at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ORDERED to file the required documents above to correct the defects in the Petition. Petitioner is also ORDERED to serve a new Notice of Hearing, along with a copy of the Amended Petition, for the continued hearing date on all parties identified

above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. Petitioner is encouraged to seek legal advice from an attorney or reach out to the Court's Family Law Facilitator and Self-Help Center for assistance. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF KAYLYNN CECIL

Case Number: 23PG-0031881

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Report has not been submitted. The report was mailed to the Guardian on November 25, 2025 and has not been returned. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**

GUARDIANSHIP OF RYDER DORMAN

Case Number: CVPG16-0028713

This matter is on calendar for hearing on a Successor Petition for Appointment of Guardian of the Person of minor, Ryder Dorman. The Petition was filed by the minor's cousin, Joshua Dorman. Letters of Temporary Guardianship issued on February 11, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

An invalid proof of service was filed on March 5, 2025. The proof of service was undated and items 2, 3 and 4 were left blank. There is no valid proof of service of the Notice of Hearing for the guardian, mother, maternal grandparents, or siblings Shaylynn, Mason, and Ethan. The Court will dispense with notice to the deceased father and paternal grandparents. Insufficient information has been provided to permit the Court to dispense with notice to all other parties. The mother must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1.

The Court has reviewed the Court Investigator's report, February 25, 2025, which recommends granting the Petition. The Court notes that form ICWA-010(A) indicates that the child may be an Indian Child. Petitioner is ORDERED to complete and file Judicial Council form ICWA-030.

This matter is continued to **Monday, April 28, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a